

Court No. - 36

Case :- CONTEMPT APPLICATION (CIVIL) No. - 1770 of 2021

Applicant :- Mukhtar Washeem

Opposite Party :- Rajesh Sharma, Executive Engineer

Counsel for Applicant :- Sandeep Kumar

Hon'ble Mahesh Chandra Tripathi,J.

Heard learned counsel for the applicant through video conferencing.

The applicant is before this Court for a direction to initiate contempt proceeding against the respondents for disobedience of the order dated 24.11.2020 passed in Writ-C No.18439 of 2020 filed by the applicant, wherein the Division Bench passed following order:-

"Learned counsel for the petitioner has disputed the accuracy of the bill issued by respondent-Corporation.

Ms Usha Kiran, learned counsel for the respondent-Corporation submits that petitioner has a remedy to approach the authority concerned under Clause 6.5 of the U.P. Electricity Supply Code, 2005. She further submits that in case the petitioner approaches the said authority, the competent authority shall consider the same and pass appropriate order within the stipulated period.

Considering the facts and circumstances of the case, the present writ petition is disposed of with liberty to the petitioner to approach the competent authority under Clause 6.5 of the Electricity Supply Code, 2005 within 15 days from today, the said authority shall consider the case of the petitioner and pass appropriate orders in accordance with law within a period of one month thereafter.

With the aforesaid observations, the writ petition stands disposed of."

The Court has proceeded to peruse the record in question as well as communication dated 23.3.2021 made by the Executive Engineer, Electricity Urban Distribution Division-First, Bareilly, which is appended as Annexure No.9 to the application, wherein categorical notice has been sent to the petitioner stating that the applicant himself has not cooperated in the matter. The request has been made for permitting the employees of the billing agency to enter in his premises so that the reading may be taken.

In the aforesaid facts and circumstances the Court is not inclined to initiate any proceeding under Section 12 of the Contempt of Courts Act, 1971.

Confronted with this situation, learned counsel for the applicant

states that the applicant does not incline to press the contempt application.

The contempt application is accordingly dismissed as not pressed. However, it is always open to the applicant to invoke the remedy as available in law.

Order Date :- 22.6.2021

RKP